

Redesigning Democratic Accountability

A Distributed, Competency-Aware, and Anti-Capture
Governance Architecture for Australia

Expanded Policy Discussion Paper

Working Draft — Version 2

August 2026

Abstract

Australia's arrangements for political access, formal advice, and post-office employment systematically favour private influence over public audit. Investigative reporting continues to document opaque lobbying, porous revolving-door controls, and the absence of routine ministerial diary publication. This expanded paper sets out a coherent architectural response: a region-first, competency-aware, transparency-default system designed to lower the returns to closed-door access, embed long-horizon institutional duty, and make influence and advice trails publicly inspectable by default.

The model integrates six elements: (1) a legal hierarchy privileging regional self-governance subject to residual national functions; (2) competency demonstration for governing and advisory roles; (3) mandatory public records of formal advice and ministerial meetings; (4) structural constraints on advisor and consultant capture; (5) preferential citizen signalling on discretionary expenditure; and (6) an open, categorised issue-and-complaint system. This version deepens the treatment of edge cases, friction points, modular high-leverage alternatives that do not require full constitutional change, detailed specification of near-term instruments, and staged rollout pathways. Visual summaries of architecture, sequencing, and risk are included to aid evaluation and advocacy.

Contents

1 Introduction and Problem Diagnosis

Democratic legitimacy depends on the capacity of citizens and intermediary institutions to observe, contest, and correct public power. When influence channels are opaque, post-office employment rules are weakly enforced, and formal advice remains largely private, practical accountability erodes even while elections continue.

Australian federal practice displays several reinforcing features:

- Ministerial diaries and meeting records are not subject to a strong, uniform, timely public disclosure regime.
- The formal lobbyist register captures only a minority of professional influence activity; in-house government-relations work and many forms of sponsored parliamentary access remain outside effective public view.
- Cooling-off and post-separation employment rules for ministers and senior officials have repeatedly proven porous.
- Advisory and consultancy ecosystems create recurring pathways for industry-aligned expertise to shape policy while underlying interests and prior relationships stay imperfectly visible.

These are not primarily failures of individual character. They are predictable products of institutional design that makes private access relatively cheap and public scrutiny relatively costly. Organised interests can systematically out-compete diffuse public interests in the contest for ministerial time and policy attention.

Core diagnosis The central design failure is an inverted incentive structure: closed-door influence is high-return and low-visibility; public audit is high-cost and incomplete. Any durable remedy must invert those relative returns.

This paper does not treat lobbying or expertise as illegitimate. It argues that the *terms* on which influence and advice operate must be rebalanced toward transparency, verifiable independence of formal advisors, and structural reduction in the decisive power of private channels.

2 Design Principles

The architecture rests on six interlocking principles.

1. **Transparency by default.** Formal advice and records of significant access are public unless a narrowly defined, independently reviewable exception applies.
2. **Reduced returns to private access.** Rules should make closed-door influence less decisive relative to open, documented, contestable processes.
3. **Competency as a visible criterion.** Entry into governing and senior advisory roles should incorporate demonstrated capability alongside electoral or appointment legitimacy.
4. **Region-first subsidiarity with residual national functions.** Decisions locate at the lowest competent level, subject to clear residual duties for genuine network-level public goods.

5. **Anti-capture architecture.** Employment, placement, and disclosure rules actively impede revolving-door and proxy capture of advisory and regulatory functions.
6. **Long-horizon institutional duty.** Designated bodies carry explicit fiduciary-style obligations toward intergenerational and systemic outcomes that ordinary electoral cycles under-value.

These principles reinforce one another. Transparency without anti-capture rules can be gamed by volume. Competency mechanisms without public audit risk technocratic insulation. Regional empowerment without residual national capacity risks free-riding. The model therefore treats them as a package while recognising that change will be staged.

3 Glossary of Key Concepts

Terms below are defined as used in this paper. Several are ordinary concepts in political science or Australian public law; others are paper-specific constructions. Where a term is used in a specialised sense, that sense is stated explicitly.

Adaptive re-capture

The tendency of organised interests, after an integrity reform, to invent lawful workarounds that restore privileged access (new intermediary roles, timing games, or forum-shifting). The model treats this as an expected residual risk requiring continuous adversarial review and anti-avoidance drafting.

Anti-capture architecture

A package of employment, placement, cooling-off, and disclosure rules designed to impede revolving-door and proxy capture of advisory and regulatory functions. Distinct from disclosure alone: the aim is to change the structural returns to industry-aligned advice pathways, not merely to label them.

Anti-brigading design

Participatory safeguards intended to limit coordinated, unequal mobilisation that would otherwise skew preferential citizen signalling or open-issue systems toward well-resourced organised groups.

Competency-aware selection

Supplementary capability demonstration for governing and senior advisory roles—open, version-controlled simulations on real public data; inspectable prior-performance records; structured program assessment; and independently published scores—used *alongside* electoral or appointment legitimacy, not as a replacement for elections.

Cooling-off period

A statutory interval after leaving ministerial or senior official office during which specified private employment, lobbying, or advisory activity is restricted. In this model, “meaningful” cooling-off implies enforceable duration, real sanctions, public post-separation registers, and anti-avoidance rules—not merely aspirative guidelines.

Delayed-open proceedings

Dispute or classification processes that may begin closed for legitimate sensitivity, but default to later public release on a published schedule so that accountability is deferred rather than extinguished.

Discretionary expenditure envelope

The portion of public spending not locked by protected baselines (for long-horizon or equity-critical goods) and therefore eligible, under the model, for preferential citizen signalling pilots.

Distributed Fiduciary Governance Model

The working name used in this paper for the overall architecture: region-first allocation of competence, competency-aware entry to roles, transparency-default advice and access records, anti-capture constraints, preferential citizen signalling, and an open issue system, under residual national functions and long-horizon institutional duties.

Formal advice

Advice rendered in an official advisory, consultancy, or departmental capacity that informs a public decision. Under transparency by default, such advice is public unless a narrowly enumerated, independently reviewable exception applies.

Functional coverage of influence activity

A register design that captures influence by what actors *do* (seeking to affect government decisions for clients, employers, or sponsors), including in-house government-relations and sponsored parliamentary access, rather than by a narrow occupational label of “lobbyist.”

In-house influence

Professional government-relations or advocacy work performed by employees of a firm, peak body, or organisation on behalf of that organisation, typically outside the scope of a traditional third-party lobbyist register.

Inverted incentive structure

The paper’s core diagnosis: institutional settings in which closed-door influence is high-return and low-visibility, while public audit is high-cost and incomplete. Durable reform must invert those relative returns.

Long-horizon institutional duty

An explicit fiduciary-style obligation on designated bodies to weigh intergenerational and systemic outcomes that ordinary electoral cycles systematically undervalue (for example climate, fiscal sustainability, or institutional integrity capital).

Ministerial diary publication

Timely, machine-readable public release of ministers’ (and, where specified, senior officials’) meeting and access records, with narrow exceptions, independent review, delayed-release schedules, and published exception statistics.

Modular high-leverage alternative

A freestanding statutory or administrative reform module (for example mandatory diaries or an expanded influence register) that delivers integrity gains without requiring full constitu-

tional redesign, and that can proceed even if later architectural stages are delayed.

Open issue and complaint system

A categorised, durable public accountability platform for issues and complaints, with private channels for security-sensitive matters, published escalation thresholds, independent oversight, and an archival trail.

Preferential citizen signalling

A structured mechanism by which citizens express ranked or weighted preferences over a defined discretionary spending envelope, under equal citizen weighting, protected long-horizon baselines, and full transparency of organised campaigns. It is a signalling and allocation aid, not a substitute for representative government.

Proxy capture

Indirect capture of advisory or regulatory capacity through intermediaries—consultancies, secondees, revolving placements, or aligned “independent” experts—rather than through direct employment of a decision-maker by the regulated interest.

Public advisory and access records

The paired transparency instruments of (i) public formal advice by default and (ii) published ministerial diaries / significant access records, jointly intended to make influence and advice trails inspectable.

Region-first legal hierarchy

An allocation rule under which primary competence over matters that can be effectively governed at regional scale rests with regions, subject to limited residual national powers and published criteria for resolving region-versus-network disputes.

Residual national functions

Commonwealth (or network-level) powers reserved for genuinely non-separable tasks or large-externality domains: defence and external security; monetary integrity; defined major inter-regional infrastructure; baseline rights and equity floors; and treaty implementation where international obligations bind the Commonwealth.

Revolving door

Movement of personnel between public office and private interests they formerly regulated or funded, creating reciprocal access and expectation effects. The model targets this through cooling-off, concurrent-employment limits, and disclosure of advice provenance.

Sponsored access

Arrangements in which third parties fund, organise, or gatekeep meetings, events, or parliamentary engagement that confer preferential proximity to decision-makers.

Subsidiarity (region-first)

The principle that decisions should locate at the lowest competent level capable of effective governance, here operationalised as region-first competence with explicit residual national duties for network-level public goods.

Transition capture

Intensified influence activity during the window between announcement and enforcement of integrity rules, when actors race to lock in favourable arrangements before new constraints bind.

Transparency by default

The presumption that formal advice and records of significant access are public, with exceptions narrowly defined, independently reviewable, and preferably time-limited via delayed release rather than permanent secrecy.

4 System Architecture Overview

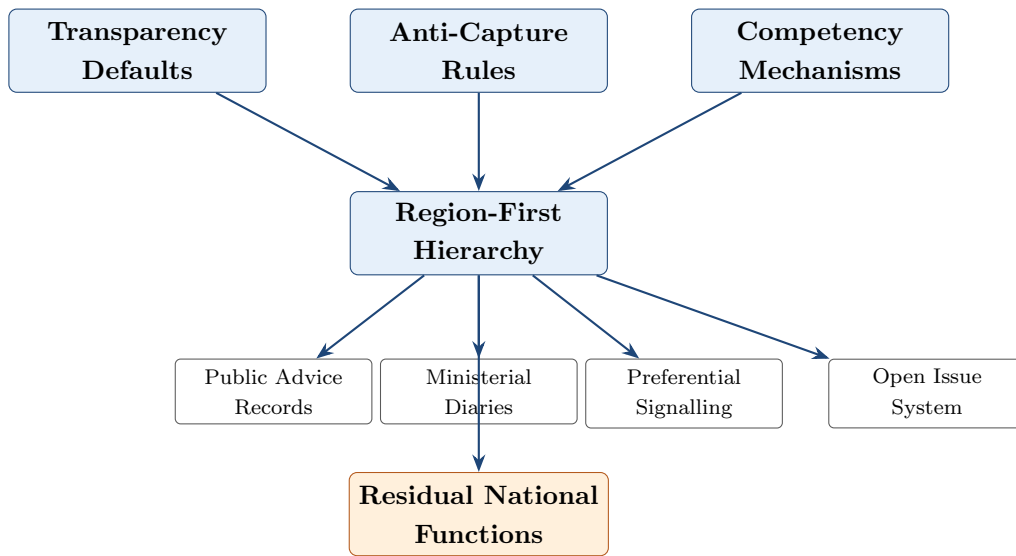


Figure 1: High-level architecture: core principles feed a region-first operating layer, supported by transparency instruments and constrained by residual national functions.

5 Core Institutional Elements

5.1 Region-First Legal Hierarchy

Primary competence over matters that can be effectively governed at regional scale rests with regions. National residual powers are limited to genuinely non-separable functions or those generating large externalities: defence and external security; monetary system integrity; defined major inter-regional infrastructure; baseline rights and equity floors; and treaty implementation where international obligations bind the Commonwealth.

Cross-regional coordination occurs through regular summits and standing technical interfaces. Dispute adjudication between region-first claims and demonstrated network-level necessity follows published criteria and open (or delayed-open) proceedings.

5.2 Competency-Aware Selection

Elections remain central. The model supplements them with structured demonstrations of capability: open version-controlled simulations using real public data; publicly inspectable prior-performance records; structured assessment of proposed programs; and independent scoring published before final selection.

Competency edge cases Simulations can be coached, culturally biased, or incomplete measures of judgment under ambiguity. Parallel qualitative evaluation and continuous public audit of the assessment systems themselves are required.

5.3 Public Advisory and Access Records

Formal advice is public by default. Exceptions (national security, genuine commercial-in-confidence, personal privacy) are narrowly enumerated, independently reviewable, and subject to delayed-release schedules. Ministerial diaries are published on a short fixed timetable in machine-readable form.

5.4 Anti-Capture Constraints

Formal advisory roles face meaningful cooling-off periods, limits on concurrent industry employment, structured public-interest placements, and public disclosure of prior roles and advice provenance.

5.5 Preferential Citizen Signalling

A defined portion of discretionary expenditure is subject to preferential citizen signalling, with protected baselines for long-horizon goods, equal citizen weighting, and transparency of organised campaigns.

5.6 Open Issue and Complaint System

A categorised public system (with private channels for security-sensitive matters) creates structured, durable accountability trails with published escalation thresholds.

6 Direct Response to Lobbying and Access Problems

Current weakness	Model response	Near-term instrument
No strong diary publication	Transparency default for meetings	Mandatory timely diary publication
Narrow lobbyist definition	Functional coverage of influence activity	Expanded register & code
Porous revolving door	Employment & cooling-off constraints	Longer enforced cooling-off + disclosure
Private formal advice	Public advice records by default	Selected-category advice publication
Concentrated national access points	Region-first distribution of decisions	Regional competence pilots

Table 1: Mapping of documented influence problems to model responses and near-term instruments.

7 Edge Cases and Friction Points

7.1 Material Edge Cases

Classified / mixed advice.

Requires clear extraction rules for non-sensitive portions and independent review of classification decisions.

Commercial-in-confidence.

Fixed maximum confidentiality periods, mandatory redacted public versions, and published exception statistics.

Indigenous governance interfaces.

Region-first structures must specify interfaces with land councils, native title bodies, and related institutions.

Digital and platform externalities.

Residual national capacity must be stress-tested for data, platform, and AI-related harms.

Low or skewed participation.

Anti-brigading rules, participation diagnostics, and fallback decision rules are required.

7.2 Political and Administrative Friction

- Strong resistance to diary publication.
- Public-service and consultancy opposition to cooling-off rules.
- State-level resistance to regional experiments.
- Administrative capacity risk under under-funding.
- Potential chilling of frank advice.

- Transition windows for intensified influence activity.

8 Modular High-Leverage Alternatives

Full constitutional redesign is not required. The following modules can stand alone.

Module 1 — Mandatory Ministerial Diaries Legislation or binding standards requiring publication within 14–28 days, machine-readable format, limited enumerated exceptions, independent review, delayed-release schedules, and annual public statistics on exception rates.

Module 2 — Expanded Influence Register Functional definition of registrable influence activity covering in-house and sponsored access. Public, searchable, timely register with meaningful penalties.

Module 3 — Enforced Cooling-Off + Disclosure Longer statutory periods, real sanctions, public register of relevant post-separation employment, independent monitoring, and anti-avoidance rules.

Module 4 — Public Advice Records (Selected Categories) Start with a defined list of high-impact decisions. Structured summaries or transcripts by default. Narrow exceptions with review.

Module 5 — Open Issue / Complaint Platform Categorised public system with private security channel, published escalation thresholds, independent oversight, and durable archive.

Module 6 — Preferential Signalling Pilot Limited discretionary envelope, equal citizen weighting, protected long-horizon baselines, full transparency of results and campaigns, independent evaluation.

9 Staged Rollout Pathways

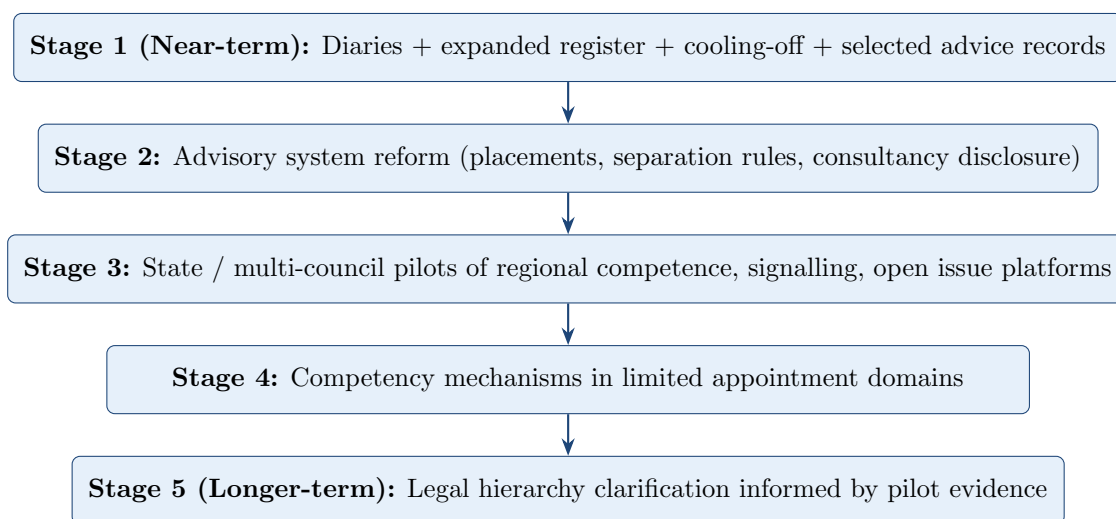


Figure 2: Staged rollout. Each stage delivers standalone value even if later stages are delayed.

Stage	Primary instruments	Main friction	Success signal
1. Transparency package	Diaries, register, cooling-off, advice records	Ministerial & industry resistance	Timely publication; reduced exception abuse
2. Advisory reform	Academy pilots, separation rules	Consultancy & APS pathway concerns	Fewer conflicted advice pathways
3. Regional pilots	Competence, signalling, issue platforms	State government caution	Published evaluation vs pre-set metrics
4. Competency tools	Open simulations for selected roles	Technocracy / bias accusations	Public confidence in fairness
5. Hierarchy adjustment	Legislative clarification	High political difficulty	Evidence-based case from prior stages

Table 2: Rollout stages, expected friction, and observable success signals.

10 Risk Matrix and Mitigations

Risk	Likelihood	Impact	Primary mitigation
Transition capture	High	High	Protected staging; rapid transparency rules; independent monitoring
Coordination failure	Medium	High	Clear residual mandates; published dispute criteria
Competency metric gaming	Medium	Medium	Open tools; parallel qualitative assessment; public audit
Participatory skew / overload	High	Medium	Anti-brigading design; diagnostics; protected baselines
Adaptive re-capture	High	High	Continuous adversarial review; anti-avoidance language
Administrative under-capacity	Medium	High	Dedicated funding; phased scope; review clauses
Chilling of frank advice	Medium	Medium	Structured summaries; delayed release; senior leadership

Table 3: Principal residual risks with indicative likelihood, impact, and mitigations.

11 Relation to Existing Integrity Agendas

Elements map directly onto agendas already advanced by integrity-focused parliamentarians: stronger lobbying transparency, longer cooling-off periods, coverage of in-house influence, and visibility of ministerial access. The contribution is to embed those measures inside a coherent architectural logic. A near-term transparency-and-cooling-off package is both a freestanding improvement and the natural first step. Integrity-focused independents and crossbenchers remain the most plausible early audience.

12 Conclusion

Recurring lobbying, access, and revolving-door controversies are evidence of institutional incentives. An architecture that raises the cost of opaque influence, makes advice and access trails inspectable, distributes more decisions regionally, and embeds long-horizon duty offers a structural response.

High-leverage modular reforms are available immediately and can be specified tightly enough to be useful in isolation. The fuller architecture supplies both a destination and criteria for judging whether successive changes move toward more accountable public power or merely rearrange existing patterns of influence.

A Near-Term Legislative Priority List

1. Mandatory, timely, machine-readable publication of ministerial and senior-official diaries with narrow, reviewable exceptions and public exception statistics.

2. Functional expansion of the influence-activity register to cover in-house and sponsored access work.
3. Strengthened cooling-off periods, real enforcement capacity, public post-separation employment disclosure, and anti-avoidance rules.
4. Initial public-record requirements for formal advice on a defined list of high-impact decision categories.
5. Independent oversight capacity resourced to monitor compliance and report publicly.

B Competency Assessment Design Principles

- Open-source or fully documented scenario designs with version control.
- Post-exercise publication of materials, scoring frameworks, and aggregate results.
- Structural separation of scenario designers from final political selection authorities.
- Explicit bias auditing (cultural, socio-economic, experiential).
- Parallel qualitative evaluation of judgment, ethical reasoning, and coalition capacity.
- Regular independent review of whether the tools remain predictive and fair.

C Federal Compatibility Note

Australia already distributes power across Commonwealth, state, and local levels. The region-first proposal builds on that tradition. It seeks clearer residual national functions, transparency overlays that apply across levels, and experimental space for enhanced regional competence and citizen signalling. Constitutional change, where required, belongs to a later stage informed by statutory pilots.

End of expanded working draft (Version 2).